

TENTATIVE RULING

Omar Soto
v.
Ramco Enterprises, L.P., et al.
(and Related Cross-Action)

22CV002774

Plaintiff's Motion for Approval of PAGA Settlement

Hearing Date: August 14, 2026

The hearing on Plaintiff Omar Soto's ("Plaintiff") unopposed Motion for Approval of the PAGA Settlement and the related Case Management Conference are **CONTINUED** to October 2, 2026, at 8:30 a.m. in Department 14. Preliminarily, the Court finds that the settlement is fair, adequate, and reasonable. [*See Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801-1802; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.] However, a continuance is warranted to allow Plaintiff to submit supplemental documents by September 24, 2026, that address the issues raised below.

Notice of Settlement.

A settlement notice meets due process requirements if it is "reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and affords them an opportunity to present their objections." [*Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 694-695.] "[P]rovided that the settlement notice satisfies due process, the trial court has broad discretion to determine the specific form and content of the notice and to decide whether notice by first class mail, without any further follow-up by [class counsel], [i]s legally sufficient." [*Ibid.*]

In her declaration, Jodey Lawrence, an employee of Phoenix Class Action Administration Solutions ("Phoenix"), states that, "[a]s part of the procedures for mailing the Notice of Settlement to Aggrieved Employees, Phoenix will mail Individual PAGA Payments to the Aggrieved Employees along with the Notice of Settlement to Aggrieved Employees via First Class U.S. Mail, postage prepaid." [Lawrence Decl. at ¶ 12.] The papers do not indicate that Aggrieved Employees will receive a Spanish version of the Notice of Settlement. The Court anticipates that both English and Spanish versions will be provided to the Aggrieved Employees. Plaintiff must submit copies of both versions to the Court before the next hearing.

Expenses.

Counsel requests \$33,967.37 in litigation costs, approximately \$14.22 per person. It is uncertain whether the expenses listed in Kristen Agnew's (\$13,341.34), Victoria Harp's (\$3,965.15), and B. James Fitzpatrick's (\$16,660.88) declarations include costs related to the confidential settlement(s) of Plaintiff's individual claims. [See Settlement Agreement, Exh. 1 to

Agnew Decl. at § 5.1.] Plaintiff shall submit supplemental papers that specify which expenses are related to the PAGA claims versus the individual claims.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.